ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	115th Commission Meeting
DATE:	01 February 2023
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Seek approval on the country visit by the Iceland & Bahrain for the second review cycle – LD** *The Commission on 5 January sought the Ministry of Foreign Affairs & External Trade's (MoFAET) intervention in seeking clarification from the UNODC on whether Bhutan will have to undergo same review process from the beginning after re-acceding to the UNCAC.* *In response, the MoFAET has written to the Commission communicating the following suggestions received from the UNCAC secretariat:* • *While there is no guideline which specify how review processes will work after re-accession as such case is the first of its kind, the Secretariat opined that the risk of de novo review would be more if the scheduled second review cycle is not completed. Thus, the Secretariat recommends completing it when the convention is still in force which in a way will also ensure continuity of Bhutan's treaty obligations.* • *The Secretariat is planning to complete the Bhutan's review when the convention is still in force which if not*	**Noting the suggestions of the Secretariat and the advantages it will have for re-acceding, the Commission directed to go ahead with the country visit by the reviewing state for the second review cycle. In addition, directed to write to the UNODC intending to go ahead with the review while also proposing to conduct it sometime in the month of either April or May 2023.**

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	completed will only escalate the matter. In addition, since the Self-Assessment Checklist has been already completed, it is even more advisable to go ahead with the review. *To this, the Legal Division sought Commission's direction on whether to go ahead with the second review cycle or not.*	
2.	**Seek approval on the issuance of IVR certificate – DoPS** *The Director, DoPS updated the Commission on activities related to roll out of Integrity Vetting System such as registration of the agency focal into the system, on-going vetting of the candidates for the National Council and the plan for sensitization on the system.* *In addition, following the endorsement of certificate sample for the Integrity Vetting Report during the 107th Commission meeting, the Department sought Commission's endorsement to issue Integrity Vetting Report certificate from February 2023.*	**To this, the Commission directed the following:** • **Given that the restorative aspect is not finalized, the Commission directed to keep on hold the issuance of certificate. To this, the Department to work on the restorative aspect of the integrity vetting and see the possibility of generating the first IVR certificate during the birth anniversary of His Majesty The King.** • **The Department to consider the spiritual propitiousness (including the name of the individual) when it decides to issue the first IVR certificate.** • **To expedite the development of Information, Education and Communication material on the IVS.**
3.	**Discuss on the proposal to enhance forensic and intelligence infrastructure in the ACC through a long-term roadmap – DARe & DoI** *Following the recent visit to the Corrupt Practices Investigation Bureau (CPIB), the Director, DoI and Head, DARe proposed to come up with the tangible action plan towards strengthening existing forensic and intelligence infrastructure.*	**While noting the plan to come up with the action plan, the Commission directed the following:** • **Determine specific area of forensic which can be prioritized.** • **PPD to find out the progress related to the justice sector forensic laboratory and also find out the specific area of forensic that the laboratory will focus on. Since the focus of the ACC will be on the digital forensic, we can**

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		also explore possibilities to take the lead in this area.
4.	**Others:** **1. Amendment of suspension orders** *Following the adoption of Guidelines on Suspension of Business License, the Legal Division (LD) proposed that the license henceforth will only be suspended if there is prima facie case of corruption in obtaining a business license. However, in cases where an individual or entity are found to have engaged in corruption offenses by using a lawfully obtained license shall be prohibited from entering into contractual relationship with public agencies till the conclusion of a case to avert perpetuation of corruption in the public service. To this, the LD sought Commission's direction on amending the earlier suspension order issued by the Commission.* **2. TI-CPI report 2022** **3. Capacity development for the mid-level and senior level staff.** *The Competency Based Framework determines different levels of training for the staff based on the proficiency of the staff namely foundational for the new recruits,*	**The Commission endorsed the proposal with the following directions:** • **Send public notification through the mainstream media with the list of business entities.** • **To ensure that the gravity of the offence is also considered while deciding to either suspend or prohibit. Since the gravity of offence has not been included in the revised Guideline, the LD to accordingly improve it.** **Besides, the Commission reminded on the need to include suspension section under the legal module of the Complaint & Investigation Management System.** **In addition, the PPD was directed to go through the Annual Report of the Office of the Attorney General to see whether the data pertaining to the referral of corruption cases is consistent with the one reported in the ACC's Annual Report.** **Given that the CPI score for Bhutan has been stagnating at 68 for past five years, PPD was directed to see through what sort of incisive interventions or collaboration especially with the media and Civil Society Organizations are required to make a breakthrough.** **To ensure expeditious roll out of the intermediate and advanced training for the mid-level and senior level staff, the HRS was directed to work on the course for the same.**

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	intermediate training for the mid-level staff and advanced/expert training for the senior-level staff.	
	4. Closure of land related cases	**Given the substantial number of cases related to land, the Commission directed the following:** • **Compile ongoing and backlog cases related to land.** • **The DoI & LD to collaborate to expedite the closure of land related cases. Since no effective result can be achieved through the Action Taken Report, the DoI can also explore possibilities of forming a joint team/committee with members from the National Land Commission Secretariat (NLCS) and Dzongkhags to ensure expeditious closure of such cases.** • **Given the change in the leadership of the NLCS, DoI to also look forward to initiating bilateral discussions on pertinent matters.**

– On Leave –

Commissioner

Commissioner

Chairperson

Audit Trail

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File Name	115th Com. Mtg_Minutes.pdf
Document ID	a225ce871f284679ac7c5877b77fa1ae
Fingerprint	89e8028ccf1961ac3186dc007ed22fed
Status	Completed

Document History

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Document Sent	Document Sent to Jamtsho (jamtsho@acc.org.bt)	Feb 17 2023 11:13AM UTC
Document Sent	Document Sent to Deki Pema (dpema@acc.org.bt)	Feb 17 2023 11:13AM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.18	Feb 17 2023 11:14AM UTC
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